

NovaTech Solutions Pvt. Ltd.

MUTUAL NON-DISCLOSURE AGREEMENT (NDA)

Document ID: NTS-LEG-001

Version: 1.0

Effective Date: 01 January 2026

Department: Legal

Classification: Strictly Confidential

1. PARTIES

1.1 Agreement

This Mutual Non-Disclosure Agreement ("Agreement") is entered into between NovaTech Solutions Pvt. Ltd. ("Disclosing Party" or "Receiving Party") and the individual or organization receiving confidential information.

1.2 Purpose

The purpose of this Agreement is to enable the parties to exchange confidential information for evaluating or performing legitimate business activities while protecting proprietary information.

2. DEFINITIONS

2.1 Confidential Information

"Confidential Information" means any non-public information disclosed in written, oral, electronic, visual, or any other form including but not limited to:

- Source code
- Software architecture
- Product roadmaps
- Customer information
- Financial information

- Pricing strategies
- Business plans
- Marketing strategies
- Security procedures
- Research and development

2.2 Receiving Party

The party receiving Confidential Information.

2.3 Disclosing Party

The party providing Confidential Information.

3. CONFIDENTIALITY OBLIGATIONS

3.1 Non-Disclosure

The Receiving Party shall keep all Confidential Information strictly confidential and shall not disclose it to any third party without prior written consent.

3.2 Permitted Use

Confidential Information shall only be used for the business purpose for which it was disclosed.

3.3 Minimum Access

The Receiving Party shall limit access to Confidential Information only to employees, consultants, or contractors who have a legitimate business need to know and who are bound by confidentiality obligations no less restrictive than this Agreement.

3.4 Standard of Care

The Receiving Party shall protect Confidential Information using at least the same degree of care used to protect its own confidential information, but never less than a reasonable standard of care.

4. EXCLUSIONS

Confidential Information shall not include information that:

4.1 Public Information

Becomes publicly available without breach of this Agreement.

4.2 Prior Knowledge

Was lawfully known to the Receiving Party before disclosure.

4.3 Independent Development

Is independently developed without reference to the disclosed information.

4.4 Legal Requirement

Must be disclosed by law, regulation, or court order, provided the Receiving Party promptly notifies the Disclosing Party where legally permitted.

5. SECURITY REQUIREMENTS

5.1 Data Protection

The Receiving Party shall implement reasonable administrative, technical, and organizational safeguards to protect Confidential Information.

5.2 Electronic Storage

Confidential Information stored electronically shall be encrypted using industry-standard encryption methods.

5.3 Access Control

Only authorized personnel may access Confidential Information.

5.4 Incident Reporting

Any suspected loss, unauthorized disclosure, or security breach involving Confidential Information shall be reported to the Disclosing Party within twenty-four (24) hours of discovery.

6. INTELLECTUAL PROPERTY

6.1 Ownership

All Confidential Information remains the sole property of the Disclosing Party.

6.2 License

No license, ownership, or intellectual property rights are granted by this Agreement except the limited right to use the Confidential Information for the agreed business purpose.

7. RETURN OR DESTRUCTION

7.1 Return of Information

Upon written request or termination of the business relationship, the Receiving Party shall promptly return all Confidential Information.

7.2 Destruction

If requested, the Receiving Party shall securely destroy all copies of Confidential Information and certify such destruction in writing.

8. TERM

8.1 Effective Date

This Agreement becomes effective on the Effective Date listed above.

8.2 Duration

This Agreement remains in force for five (5) years unless terminated earlier by mutual written agreement.

8.3 Survival

Confidentiality obligations shall survive termination or expiration of this Agreement for five (5) additional years.

9. REMEDIES

9.1 Injunctive Relief

The parties acknowledge that unauthorized disclosure may cause irreparable harm.

The Disclosing Party may seek injunctive relief in addition to any other available legal remedies.

9.2 Damages

The Receiving Party shall be liable for damages arising from breach of this Agreement.

10. LIMITATION OF LIABILITY

10.1 No Warranty

Confidential Information is provided "as is."

The Disclosing Party makes no warranties regarding completeness or accuracy.

11. GOVERNING LAW

11.1 Applicable Law

This Agreement shall be governed by the applicable laws of the jurisdiction in which NovaTech Solutions Pvt. Ltd. operates.

11.2 Dispute Resolution

The parties shall first attempt to resolve disputes through good-faith negotiation.

If unresolved, disputes shall proceed to arbitration before litigation.

12. GENERAL PROVISIONS

12.1 Entire Agreement

This Agreement constitutes the complete understanding regarding confidentiality between the parties.

12.2 Amendments

No amendment shall be valid unless made in writing and signed by both parties.

12.3 Severability

If any provision of this Agreement is held invalid, the remaining provisions shall remain in full force and effect.

END OF DOCUMENT